

25TRCV04325 25TRCV04325

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CB%2C06%2F24%2F2026

Source SHA-256: 45a1ddb9fa9d629951a184334a1c779ffa54dba15fc0575ef9ed14a5ca59ab4a

Case Number: 25TRCV04325 Hearing Date: June 24, 2026 Dept: B

Moving

Parties: Defendant ABM Aviation, Inc.

Responding

Party: Plaintiff Donyell Kelly

Motion

to Compel Arbitration and Stay Action

The Court considered the moving, opposition, and reply papers.

RULING

The motion is DENIED.

BACKGROUND

On December 19, 2025, plaintiff Donyell Kelly, ind. and on behalf of other aggrieved employees pursuant to the California Private Attorneys General Act filed a complaint against defendant ABM Aviation, Inc. for enforcement under PAGA.

LEGAL

AUTHORITY

Under

CCP § 1281, a “written agreement to submit to arbitration an existing

controversy or a controversy thereafter arising is valid, enforceable and revocable, save upon such grounds as

exist for the
revocation of any contract.”

Under

CCP § 1281.2, “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: . . . (c) A party to the arbitration agreement is also a party to a pending court action . . . with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. . . . (d) If the court determines that a party to the arbitration is also a party to litigation in a pending court action . . . with a third party as set forth under subdivision (c) herein, the court (1) may refuse to enforce the arbitration agreement . . . ; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action . . . pending the outcome of arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding.”

DISCUSSION

Defendant ABM Aviation, Inc. requests
an order compelling plaintiff to arbitrate all claims against it.

Existence
of an agreement to arbitrate

Under

CCP §1281.2, the party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. “With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court.” See *Condee v. Longwood Management Corp.* (2001) 88 Cal. App. 4th 215, 218; see also Cal. Rules of Court, rule 3.1330. Once

such a document is presented to the court, the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges.” Baker v. Italian Maple Holdings, LLC (2017) 13 Cal. App. 5th 1152, 1160 (citation omitted).

“The burden of persuasion is always on the moving

party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence However, the burden of production may shift in a three-step process.

First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’

. . . For this step, ‘it is not necessary to follow the normal procedures of document authentication.’ If the moving

party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. The

opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. . . . If the opposing party meets its burden of

producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” Gamboa v. Northeast Community Clinic (2021) 72 Cal. App. 5th 158, 165 (citations omitted).

Defendant contends that

plaintiff agreed to arbitrate her individual employment claims. Defendant asserts that plaintiff has been employed by ABM since November 2022. On

May 29, 2024, while employed by ABM, plaintiff signed a document entitled,

“MUTUAL ARBITRATION AGREEMENT – California.” (“MAA”). Defendant argues that the MAA requires both plaintiff and ABM to arbitrate any “Covered Claims” in “binding arbitration before a single, neutral arbitrator, instead of a judge and jury in court.” The MAA defines “Covered Claims”

to include “any claim for breach of contract, for any provision of federal or

state labor code or a Wage Order, for unpaid fees, expenses, wages, or overtime, for unpaid compensation or penalties for missed meal or rest breaks, for wrongful termination, for unfair competition, for discrimination, harassment, or unlawful retaliation, for violation of the Fair Labor Standards Act, or any federal, state, or local laws to the full extent permitted by applicable federal law after the application of Federal Arbitration Act preemption principles.” The MAA further states: “As to any Covered Claim, each party waives to the maximum extent permitted by federal law, the right to jury trial and to bench trial, and the right to bring, maintain, or participate in any class, collective, or representative proceeding, including but not limited to under” PAGA. Defendant disputes that plaintiff is a “transportation worker” that falls under Section 1 of the FAA.

In opposition, plaintiff

argues that the MAA is unenforceable against plaintiff because she falls under the transportation work exemption found in Section 1 of the FAA. Plaintiff states that she is a transportation worker as that term is defined and used by the U.S. Supreme Court. During her employment with defendant, she was a shuttle bus driver, a manager on duty, and a shift supervisor. Defendant has always required that she maintain a California Class B driver's license, which defendant requires to drive a shuttle bus. Plaintiff states in her declaration that she operates a shuttle bus service to transport airport passengers, pilots, flight attendants, and airline employees from the LAX remote parking lots. As a shuttle bus driver, her duties included transport, load, and unload passengers; help passengers load and unload luggage; perform pre-inspection and post-inspection activities on the shuttle buses; refuel and maintain shuttle equipment and fuel use logs; and adhere to U.S. Department of Transportation standards. As a manager on duty, she focused on success of shuttle bus operations, including ensuring appropriate number of staff and shuttles, handling mechanical and technical failures of the buses, handling driver discipline, and periodically driving a shuttle bus. As a shift supervisor, her duties included enforcing driver schedules, shuttle assignments, ride-along audits, radio protocol and procedures, reporting driver violations, and periodically driving a shuttle bus. Plaintiff's decl. Plaintiff argues that although her driving for defendant did not personally take her across state borders, her position is “undoubtedly like those ‘last mile’ or ‘last leg’” cases for whom the transportation worker exemption still applied.

She also contends that the MAA is a mandatory requirement upon which plaintiff's employment was conditioned and that she could not continue to work for defendant without agreeing to the MAA and so it is a “contract of

employment,” citing to the declarations of defendant's representatives.

In the reply, defendant argues that plaintiff is not a transportation worker under the FAA because during the relevant period for PAGA she was a shuttle bus supervisor. In a declaration in support of the reply, Marcia Nelson, Director of Operations for ABM Industries Incorporated, which oversees operations at LAX for defendant, stated that plaintiff worked as a shuttle bus driver starting November 9, 2021, then became a shuttle bus supervisor on August 21, 2023, and continues in that role. Shuttle bus supervisors drive shuttle buses on rare occasions, not more often than approximately 1-2 times per month. Nelson decl., ¶¶ 4-5. In any event, defendant argues, California law applies even if the FAA does not.

The Court finds that the MAA is not enforceable against plaintiff as she is exempt from coverage because she is a “transportation worker” that “is engaged in foreign or interstate commerce” and thus exempt from the FAA. See *Southwest Airlines Co. v. Saxon* (2022) 596 U.S. 450, 455. The FAA “governs arbitration agreements in contracts evincing ‘a transaction involving commerce.’” *Zoller v. GCA Advisors, LLC* (9th Cir. 2021) 993 F.3d 1198, 1201 (quoting 9 U.S.C. §2). Section 1 of the FAA exempts the employment contracts of three categories of workers, including “any other class of worker engaged in foreign or interstate commerce.” 9 U.S.C. §1. This “residual” clause has been construed narrowly to apply to “contracts of employment of transportation workers.” See *Circuit City Stores, Inc. v. Adams* (2001) 532 U.S. 105, 119. To determine whether a worker qualifies as a transportation worker within the meaning of the residual clause, courts engage in a two-step analysis. First, the court “defin[es] the relevant ‘class of workers’ to which [the worker] belongs.” *Saxon*, 596 U.S. at 455. Then, it determines “whether that class of workers is ‘engaged in foreign or interstate commerce.’” *Id.* To qualify as a transportation worker, a worker must “play a direct and necessary role in the free flow of goods across borders.” *Saxon*, at 458.

Both parties acknowledge that, even as a shuttle bus supervisor, plaintiff's job includes driving a shuttle bus. Although defendant describes this aspect of plaintiff's job as “rare” and not occurring more than 1-2 times per month, it is in fact a regular and expected part of her job. Indeed, defendant requires plaintiff to have

a Class B driver's license, which defendant requires to drive a shuttle bus. When driving a shuttle bus, plaintiff transports people and luggage between LAX's terminals and remote parking lots. Her duties are "direct and necessary" to defendant's work to freely move people, including passengers, pilots, and flight attendants, and their luggage through LAX's transportation network so that they can travel domestically and internationally. See *Amaya v. Menzies Aviation USA, Inc.* (C.D. Cal. Mar. 24, 2025) 2025 U.S. Dist. LEXIS 59571 (applying exemption to cargo handler agents, operations agents, cargo agents, cargo office leads, cargo office supervisors, cargo screening agents, baggage coordinators, service desk agents, passenger service agents).

Further, the California Arbitration Act ("CAA") does not apply. The MAA is governed by the FAA. See Green decl., Ex. B, ¶ D ("This Agreement is governed by and enforceable under the FAA, the Agreement shall be interpreted under the FAA, and both the Company and I agree that the Company is engaged in interstate commerce."). Nothing in the MAA contemplates application of the CAA.

The motion is thus DENIED.

ORDER

The motion is DENIED.

Plaintiff is ordered to give notice of ruling.